

PUBLIC SERVICES - CONTINUOUS AT-A-GLANCE MASTER

Part XIV | Articles 308-314 | Neutral competence under democratic control

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01 SCOPE AND CATEGORIES

Part XIV: Arts 308-314 service law

Arts 315-323 PSCs: Topic 28

AIS / Central / State / defence

civil post differs from PSU contract

ANSWER LINE: Status selects the governing protection.

2

02 ARTICLE 309

01
Legislature has primary authority

02
President/Governor proviso rules

03
Constitution > Act > rule > instruction

04
recruitment / conduct / discipline differ

ANSWER LINE: Personnel administration is law-bound.

3

03 EQUALITY AND RESERVATION

1. Arts 14 and 16 equality

2. clauses 16(3)-(6) remain distinct

3. Art 335 balances claims and efficiency

4. Art 320 advice generally advisory

ANSWER LINE: Opportunity is protected; outcome is not guaranteed.

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4. Art 320 advice generally advisory

ANSWER LINE: Opportunity is protected; outcome is not guaranteed.

4

04 ARTICLE 310

pleasure of President or Governor

Shamsher Singh: aid and advice

special removal codes prevail

310(2) narrow specialist contract

ANSWER LINE: Pleasure is responsibility, not personal whim.

5

05 ARTICLE 311 GATEWAYS

01

protected person and civil post

02

dismissal / removal / rank reduction

03

311(1) no subordinate authority

04

procedure protects, not immunises

ANSWER LINE: Fair tenure supports candid lawful advice.

6

06 REGULAR INQUIRY

1. charges and definite imputations

2. evidence, defence and findings

3. 42nd: no separate penalty notice

4. ECIL report-supply prejudice

ANSWER LINE: The hearing on charges survives intact.

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07 THREE EXCEPTIONS

conviction-based conduct

written impracticability reasons

President/Governor State security

Tulsiram: review survives finality

ANSWER LINE: Exception is exact; convenience is not enough.

8

08 PUNISHMENT TEST

01

Dhingra: substance and consequence

02

motive differs from foundation

03

probation does not end protection

04

court reviews legality, not merits afresh

ANSWER LINE: An innocuous label cannot hide punishment.

9

09 DISCIPLINE TRACKS

1. Rule 10 suspension illustration

2. Rule 11 penalties

3. Rule 14 major inquiry; Rule 16 minor

4. criminal and departmental proof differ

ANSWER LINE: Never universalise CCS rules to every service.

10

10 ARTICLE 312 AND AIS

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10 ARTICLE 312 AND AIS

Rajya Sabha 2/3 present-voting

Parliament creates common service

IAS + IPS + Indian Forest Service

AIJS enabled, not established

ANSWER LINE: AIS legitimacy rests on shared federal control.

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11 HISTORY AND REFORM

01

312A / 313 / repealed 314

02

written orders and tenure boards

03

lateral entry with Article 16

04

capacity, appraisal and whistleblowing

ANSWER LINE: Capability must travel with equality and integrity.

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12 ANSWER ROUTE

1. exact category and source

2. named Article, case or rule

3. institutional analysis and limit

4. qualified democratic-control verdict

ANSWER LINE: Neutral competence, lawful discipline, citizen accountability.